

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED BETWEEN CLEAR CREEK PARKWAY AND SOUTH GREELEY HIGHWAY, SOUTH OF COLLEGE DRIVE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Swan Ranch LLC, Clear Creek Land Co LLC, Goat Systems LLC, William A. Sara and Ginger L. Sara Joint Revocable Trust Agreement Dated August 11, 2015, Michael James Sara, and David and Elizabeth Schroth owners of:

a parcel of land being situated in a portion of north half of Section 23, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County Wyoming and being more particularly described as follows:

commencing at the section corner common to Sections 13, 14, 23 and 24 Township 13 North, Range 67 West; thence S87°55'11”W a distance of 1073.99 feet to a point of intersection of the westerly right of way of Interstate 25 and the southerly right of way of Quartz Road and the true point of beginning; thence along said southerly right of way of Quartz Drive, N89°56'08”W a distance of 959.41 feet to a point of intersection of said southerly right of way and the easterly right of way of Clear Creek Parkway and the beginning of a curve to the right; said curve having a radius of 1860.65 feet, a chord bearing of S15°48'31”W, a chord distance of 964.75 feet and a central angle of 30°03'05”, thence along the arc of said curve and said easterly right of way of Clear Creek Parkway a distance of 975.90 feet; thence continuing along said easterly right of way the following courses and distances: S30°50'14”W a distance of 1066.61 feet to the beginning of a curve to the right; said curve having a radius of 10063.50 feet, a chord bearing of S31°05'06”W, a chord distance of 88.41 feet and a central angle of 00°30'12”, thence along the arc of said curve a distance of 88.41 feet; thence leaving said easterly right of way S58°39'41”E a distance of 836.84 feet to a point on said westerly right of way of Interstate 25; thence along said westerly right of way N24°50'55E a distance of 958.93 feet; thence S68°08'37”E a distance of 140.07 feet; thence N21°57'05”E a distance of 1241.12 feet to the beginning of a non-tangent curve to the left; said curve having a radius of 10900.45 feet, a chord bearing of N14°58'40”E, a chord distance of 398.35 and a central angle of 02°05'38”, thence along the arc of said curve a distance of 398.37 feet to the point of beginning. Said parcel of land contains 44.93 acres; and a parcel of land situated in portions of Sections 14 and 23, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County, Wyoming, being more particularly described as follows:

beginning at the northeast corner of said Section 23 being monumented by a found aluminum cap; thence along the east line of said section 23

S00°51'24"W a distance of 682.03 feet to a point on the westerly right-of-way of the BNSF railroad; thence along said railroad right-of-way S31°56'25"W a distance of 1051.00 feet to the beginning of a curve to the right; said curve having a radius of 5629.65 feet, a chord bearing of S34°06'39"W, a chord distance of 426.40 feet, and a central angle of 4°20'26", thence along the arc of said curve a distance of 426.50 feet; thence leaving said railroad right-of-way N68°02'18"W a distance of 270.29 feet to a point on the westerly right-of-way of Interstate 25; thence along said interstate right-of-way N05°30'28"W a distance of 231.46 feet to a point; thence continuing along said interstate right of way N11°30'35"E a distance of 1628.98 feet to a point on the north line of said Section 23; thence continuing along said interstate right-of-way N11°11'32"E a distance of 511.19 feet to the beginning of a curve to the left; said curve having a radius of 11614.89 feet, a chord bearing of N04°41'45"E, a chord distance of 2388.59 feet, and a central angle of 11°48'13", thence along the arc of said curve a distance of 2392.82 feet to a point on said interstate right-of-way being monumented by a found aluminum cap; thence leaving said interstate right-of-way N89°46'05"W a distance of 467.01 feet to a point on the east line of said Section 14 being monumented by a found aluminum cap; thence along the east line of said Section 14 S00°07'37"W a distance of 251.68 feet to the east quarter corner of said Section 14; thence continuing along the east line of said Section 14 S00°10'29"W a distance of 2633.11 feet to the point of beginning. Said parcel of land contains 66.39 acres; and

a parcel of land situated in a portion of Section 23, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County, Wyoming, being more particularly described as follows:

beginning at the southeast corner of said Section 23 being monumented by a found aluminum cap; thence along the south line of said Section 23 N89°03'09"W a distance of 2605.96 feet to the south quarter corner of said Section 23; thence continuing along the south line of said Section 23 N89°44'50"W a distance of 629.05 feet to a point on the easterly right-of-way of the BNSF railroad; thence along said easterly railroad right of way N39°09'07"E a distance of 3876.40 feet to the beginning of a curve to the left; said curve having a radius of 5829.65 feet, a chord bearing of N35° 32'46"E, a chord distance of 733.27 feet, and a central angle of 7°12'42", thence along the arc of said curve a distance of 733.75 feet to a point; thence continuing along said easterly railroad right-of-way N31°56'25"E a distance of 719.25 feet to a point on the east line of said section 23; thence along the east line of said Section 23 S00°51'24"W a distance of 1583.06 feet to the east quarter corner of said Section 23 being monumented by a found iron rod; thence continuing along the east line of said Section 23, S00°05'11"E a distance of 2676.02 feet more or less to the point of beginning. Said parcel of land contains 150.53 acres; and

a parcel of land containing the south ½ of Section 24, Township 13 North, Range 67 West; and all of Section 19, Township 13 North, Range 66 West of the 6th Principal Meridian, Laramie County, Wyoming, said parcel contains

973.03 acres.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein (along with some adjacent land not under their ownership) as shown in Exhibit A and to make it a part of the City of Cheyenne; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned CB Community Business and A-2 Agricultural by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

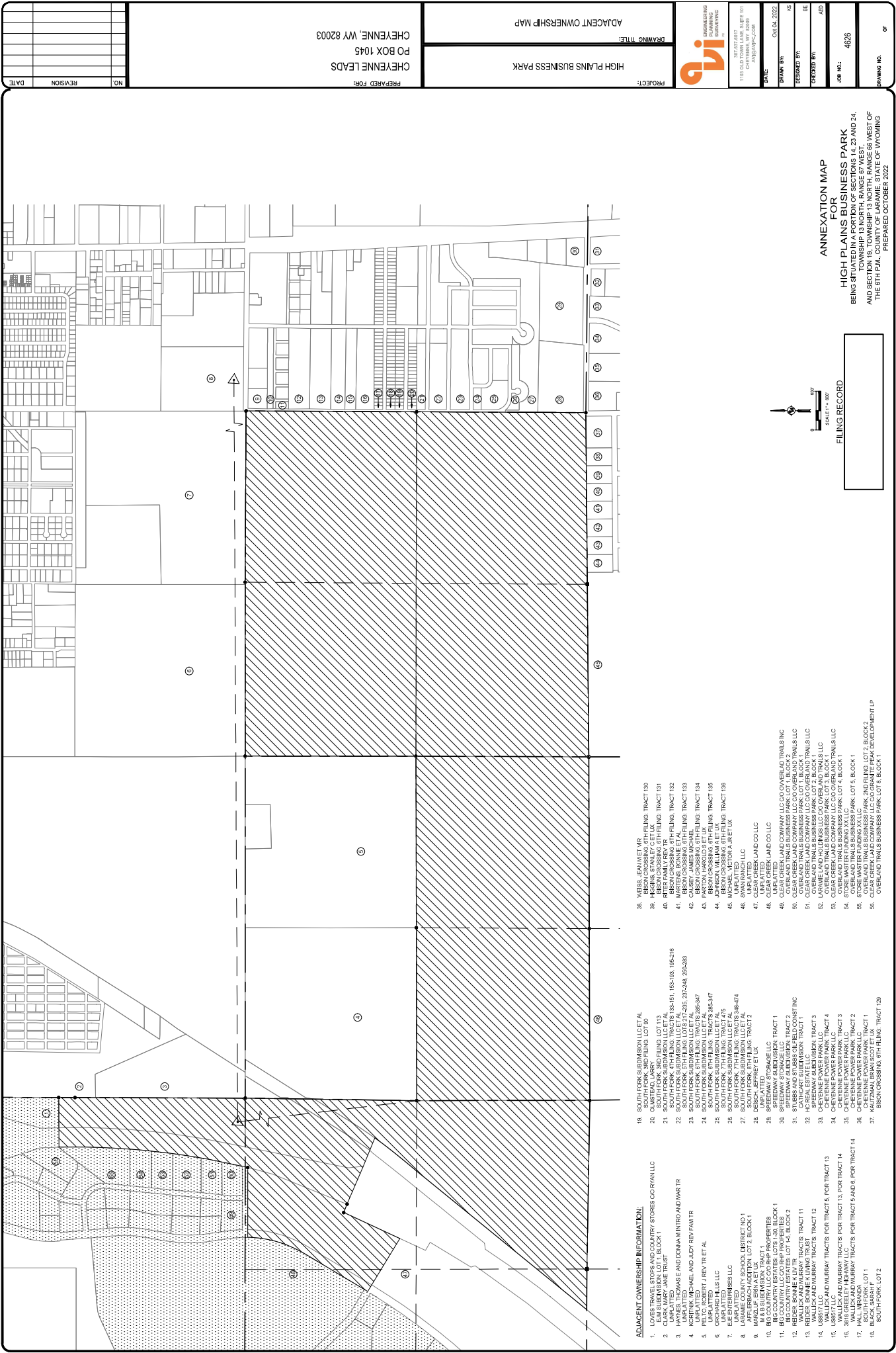
THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



ADJACENT OWNERSHIP INFORMATION:

1. LIVES TRAVEL STORES AND COUNTRY STORES CO. FAY LLC
2. CLARK, MARY JANE TRUST
3. HAYNES, THOMAS E AND DONNA M RITRO AND MAR TR
4. UNPLATTED
5. UNPLATTED
6. ORCHARD HILLS LLC
7. E.E. ENTERPRISES LLC
8. LARAME COUNTY SCHOOL DISTRICT NO 1
9. AFTERBACH ADDITION, LOT 2, BLOCK 1
10. M & B SUBDIVISION, TRACT 1
11. BIG COUNTRY LLC CO-OP PROPERTIES
12. REIDER, BONNIE K L N TR
13. WALKER AND MURRAY TRACTS, TRACT 11
14. WALKER AND MURRAY TRACTS, TRACT 12
15. UNBUILT LLC
16. WALKER AND MURRAY TRACTS, FOR TRACT 13
17. HALL, JAMES AND MURRAY TRACTS, FOR TRACT 14
18. 3818 GREILEY HIGHWAY LLC, FOR TRACT 15 AND 16, FOR TRACT 14
19. SOUTH FORK, LOT 1
20. SOUTH FORK, LOT 2

21. SOUTH FORK SUBDIVISION LLC ET AL
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ANNEXATION MAP

FOR

HIGH PLAINS BUSINESS PARK
BEING SITUATED IN A PORTION OF SECTIONS 14, 23 AND 24,
AND SECTION 18, TOWNSHIP 13 NORTH RANGE 68 WEST OF
THE 6TH P.M. COUNTY OF LARAME, STATE OF WYOMING
PREPARED OCTOBER 2022

FLING RECORD

FLING RECORD

PROJECT:	HIGH PLAINS BUSINESS PARK
DRAWING TITLE:	ADJACENT OWNERSHIP MAP
PREPARED FOR:	CHEYENNE LEADS PO BOX 1045 CHEYENNE, WY 82003
NO.	4626
JOB NO.	4626
DATE:	OCT 04, 2022
DRAWN BY:	AS
DESIGNED BY:	BE
CHECKED BY:	AS
DATE:	OCT 04, 2022
SCALE:	1" = 400'
DRAWING NO.	4626



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

OCTOBER 10, 2022

STAFF REPORT

FILE: UDC-22-00310: High Plains Business Park - Annexation

REQUEST: An annexation of 1,283 acres of land

LOCATION: Between Clear Creek Parkway and South Greeley Highway, south of College Drive

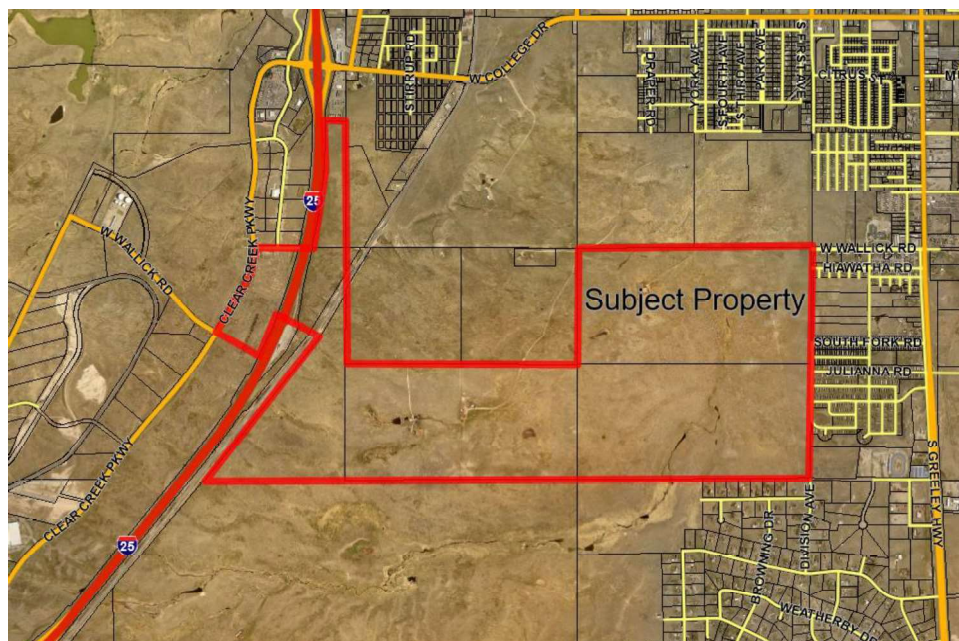
APPLICANT: Cheyenne Leads

AGENT: Brad Emmons

OWNERS: Michael James Sara; David and Elizabeth Schroth; Sara, William A and Ginger L Joint Revocable Trust; Goat Systems LLC; Swan Ranch LLC; Clear Creek Land Co LLC

PURPOSE: To allow the development of High Plains Business Park

PREPARED BY: Seth Lloyd, Planner II – Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing 1,283 acres of land to develop the property with a limited industrial use on roughly 973 acres. The land is currently largely undeveloped with only limited rural or agricultural type operations. A zone change is proposed concurrently with this annexation. Both applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County CB and A-2 to City CB, AG, and LI.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Employment, Mixed-use Residential, and Urban Residential	County CB, County A-2	Vacant (likely agriculture)
North	Mixed-use Employment, Community Business, Mixed-use Residential, and Urban Residential	LI Light Industrial, CB Community Business, County CB, County PUD, County A-2	Vacant (likely agriculture), Industrial, Commercial
South	Mixed-use Employment, Mixed-use Residential, Urban Residential, and Urban Transition Residential	County A-2, County AR	Vacant (likely agriculture), Rural Residential
East	Mixed-use Residential	County A-2, County MR, County CB	Mobile Home Park
West	Mixed-use Employment	LI, County CB	Vacant (possible agriculture), Industrial

The property is currently zoned with commercial zone and an agricultural zone in the County. The property is concurrently proposed to be annexed and rezoned to the City zones of CB, AG, and LI. The City CB zone is intended for regional commercial uses, the LI zone is intended for limited industrial uses, and the AG zone is intended for agricultural uses or as a holding zone.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property, if occupied, will also be required to be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The property is adjacent to the City to the west. Nearby properties to the east are developed with urban-style development within the South Cheyenne Water and Sewer District. The contiguity to the City and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utilities will be required to be extended with development actions.

The application **complies** with this review criterion.

4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]

The area proposed for annexation is about 13% contiguous, along the western edge.

The application **complies** with this review criterion.

5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under

subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]

A certified mailing was made to the landowners and public utilities on September 9, 2022. The public hearing for this annexation is scheduled for October 10, 2022. Twenty (20) business days prior to the announced public hearing is September 12, 2022. The earliest confirmation of delivery was dated September 12, 2022.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage responsible growth. As this annexation is on the edge of the community, any development action needs to take into careful consideration how to extend infrastructure.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with urban residential and some commercial uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. An amendment to PlanCheyenne is proposed which would change the designation of the subject property to Mixed-use Employment. This proposed use category is also best served by being within City limits. The area is within the Urban Service Boundary, which means that no matter the specific development pattern, the expectation is that the development here would be within City limits and connected to City services.

STAFF REVIEW:

Through the review process, the following comments were received:

- Technical corrections to the annexation map

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

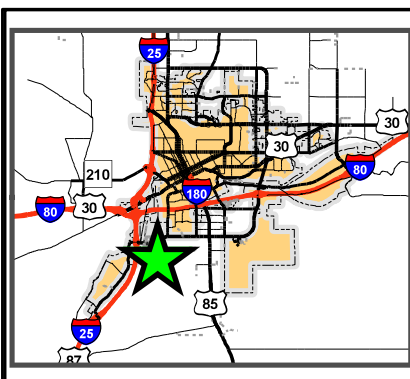
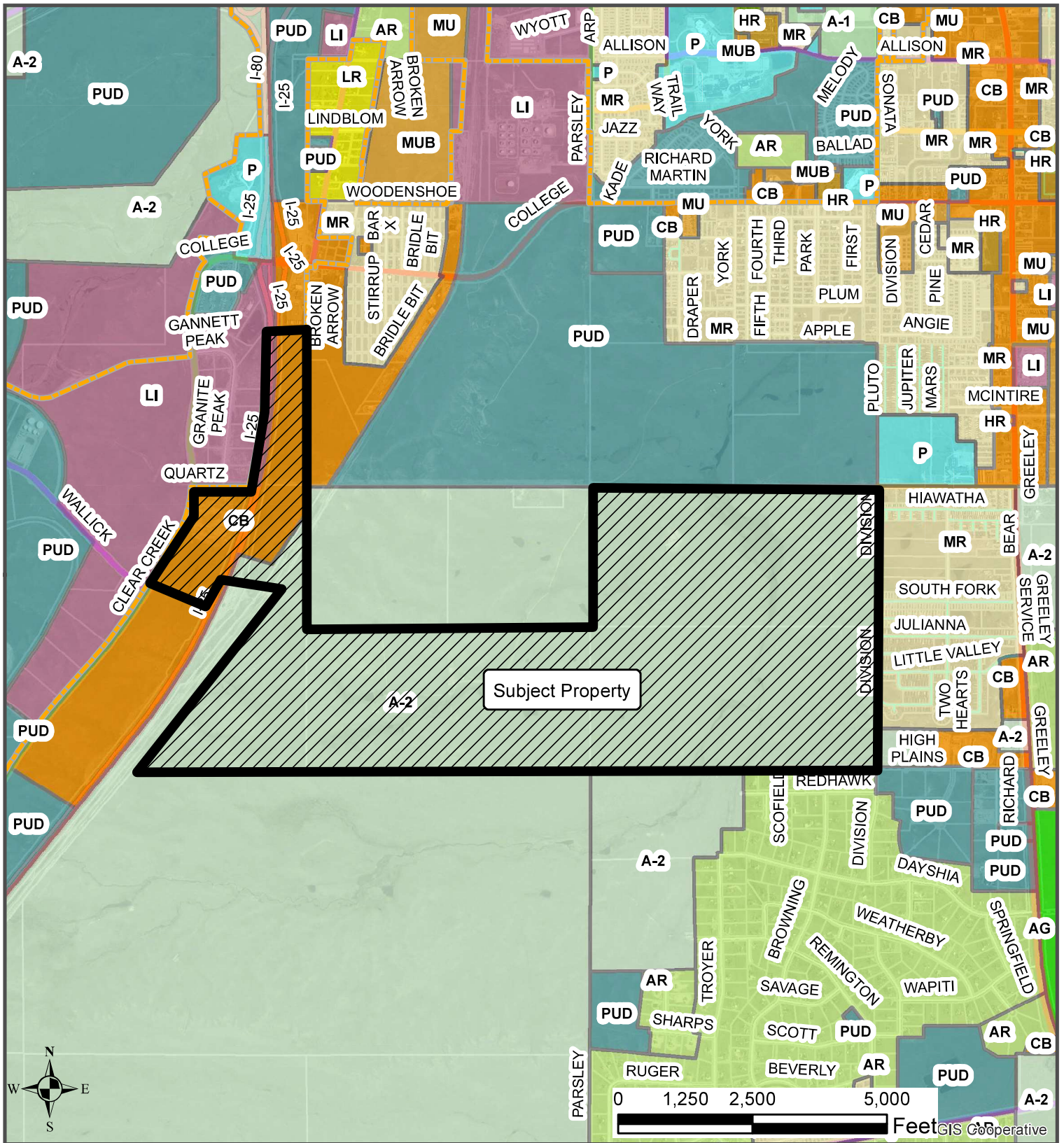
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map



Attachment 1: Zoning Map UDC-22-00310 UDC-22-00313

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | |
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| <ul style="list-style-type: none"> Nov19_CityLimits Interstate Principal Arterial Minor Arterial Major Collector Minor Collector Local Private Platted not built HR / High Density Residential MR / Medium Density Residential LR / Low Density Residential NR-2 / Neighborhood Residential - Med, Density NR-3 / Neighborhood Residential - High Density AR / Agricultural Residential | <ul style="list-style-type: none"> A-1 / Agricultural and Rural Residential A-2 / Agricultural AG / City Agricultural MUR / Mixed Use Residential Emphasis CBD / Central Business District CB / Community Business NB / Neighborhood Business MU / Mixed Use - County MUB / Mixed Use Business Emphasis MUE / Mixed Use Employment Emphasis HI / Heavy Industrial LI / Light Industrial P / Public AD / Airport District PUD / Planned Unit Development X / Exempt |
|--|--|

Planning and Development: Annexation Application

Submission date: **17 August 2022, 4:43PM**
Receipt number: **19**
Related form version: **13**

General Information

Applicant Name:	Cheyenne Leads
Applicant Address:	121 W. 15th St. Suite 304
Applicant City:	Cheyenne
Applicant State:	WY
Applicant Zip Code:	82009
Applicant Phone:	3076386000
Applicant Email	rachellez@cheyenneleads.org
Representative Name:	AVI - Brad Emmons
Representative Address:	1103 Old Town Lane #101
Representative City	Cheyenne
Representative State:	WY
Representative Zip Code:	82009
Representative Phone:	3076376017
Representative Email:	emmons@avipc.com
Owner Name:	Various
Owner Address:	Various
Owner City:	Various

Owner State:	Various
Owner Zip Code:	Various
Owner Phone:	Various
Owner Email:	Various
Who is the primary contact regarding this application?	Representative
Letter of Authorization	shorth loa.pdf msaraloa.pdf wgsaraloa.pdf hbp sw cc loa_001.pdf
Project Location (Street Address or General Location):	South of Quartz Drive and then east to Division Ave
Assessor's Parcel ID number(s)	R0066009, R0066007, R0056382, R0057041, R0057043
Total Project Area	1283.29
Current Zoning	CB, A-2
Proposed Zoning	AG - Agricultural CB - Community Business LI - Light Industrial

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	unplatted
Formal Annexation Petition	cc sw pet annex_001.pdf goat poa.pdf
Board of Public Utilities Clearance Form	hbp bopu clear_001.pdf
Annexation Map	4626 ADJACENT OWNERSHIP.pdf 4626 ANNEXATION MAP 8.17.22.pdf
Final stamped and signed mylars are required prior to scheduling for Governing Body introduction.	

Signature / Certification

Applicant Signature

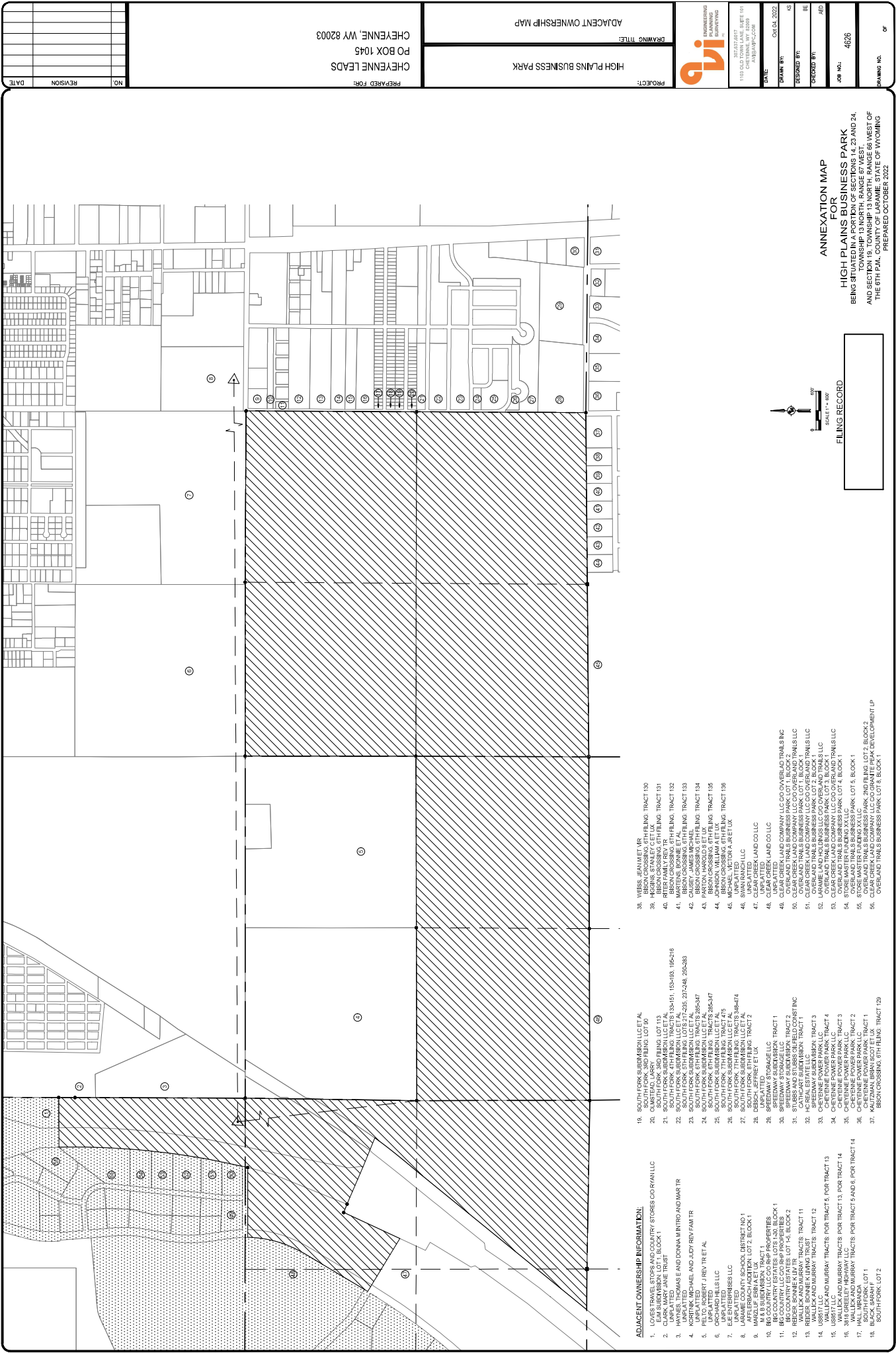
Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com



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27. SOUTH FORK SUBDIVISION, LOT 9
28. SOUTH FORK SUBDIVISION, LOT 10
29. SOUTH FORK SUBDIVISION, LOT 11
30. SOUTH FORK SUBDIVISION, LOT 12
31. SOUTH FORK SUBDIVISION, LOT 13
32. SOUTH FORK SUBDIVISION, LOT 14
33. SOUTH FORK SUBDIVISION, LOT 15
34. SOUTH FORK SUBDIVISION, LOT 16
35. SOUTH FORK SUBDIVISION, LOT 17
36. SOUTH FORK SUBDIVISION, LOT 18
37. SOUTH FORK SUBDIVISION, LOT 19
38. SOUTH FORK SUBDIVISION, LOT 20

39. HEDGECOCK, STANLEY C ET UX
40. RITER FAMILY REV TR
41. WARTENS, BONNIE E ET UX
42. BRONSON CROSSING 6TH FILING, TRACT 132
43. BRONSON CROSSING 6TH FILING, TRACT 133
44. BRONSON CROSSING 6TH FILING, TRACT 134
45. BRONSON CROSSING 6TH FILING, TRACT 135
46. BRONSON CROSSING 6TH FILING, TRACT 136
47. BRONSON CROSSING 6TH FILING, TRACT 137
48. BRONSON CROSSING 6TH FILING, TRACT 138
49. BRONSON CROSSING 6TH FILING, TRACT 139
50. BRONSON CROSSING 6TH FILING, TRACT 140
51. BRONSON CROSSING 6TH FILING, TRACT 141
52. BRONSON CROSSING 6TH FILING, TRACT 142
53. BRONSON CROSSING 6TH FILING, TRACT 143
54. BRONSON CROSSING 6TH FILING, TRACT 144
55. BRONSON CROSSING 6TH FILING, TRACT 145
56. BRONSON CROSSING 6TH FILING, TRACT 146
57. BRONSON CROSSING 6TH FILING, TRACT 147
58. BRONSON CROSSING 6TH FILING, TRACT 148
59. BRONSON CROSSING 6TH FILING, TRACT 149
60. BRONSON CROSSING 6TH FILING, TRACT 150

FLING RECORD

ANNEXATION MAP
FOR
HIGH PLAINS BUSINESS PARK

BEING SITUATED IN A PORTION OF SECTIONS 14, 23 AND 24,
AND SECTION 18, TOWNSHIP 13 NORTH RANGE 68 WEST OF
THE 6TH P.M., COUNTY OF LARAMIE, STATE OF WYOMING
PREPARED OCTOBER 2022

DRAWING NO. 4026

JOB NO. 4026

DESIGNED BY: BE

DRAWN BY: BE

DATE: OCT 04, 2022

PROJECT: HIGH PLAINS BUSINESS PARK

ADJACENT OWNERSHIP MAP

CHEYENNE LEADS
PO BOX 1045
CHEYENNE, WY 82003

PREPARED FOR:

NO. DATE

REVISION

DATE